STATE OF NEW YORK
COUNTY OF WESTCHESTER: FAMILY COURT

IN THE MATTER OF:	
TARA KATELYN WALSH, Petitioner,	FILE NO.: 154703
-v-	
STEPHEN GRANT RUSSELL, Respondent.	DOCKET NOS.: V-07641-18 O-12635-19 V-07641-18/21V V-07641-18/21AB V-07641-18/21AC

White Plains Family Court
111 Dr. Martin Luther King Jr. Blvd.
White Plains, New York 10601
January 5, 2022

BEFORE: HONORABLE MICHELLE I. SCHAUER

APPEARANCES: CHRISTOPHER SCOTT WEDDLE, ESQ.
Appearing for Tara Walsh

JASON ANDREW ADVOCATE, ESQ.
Appearing for Stephen G. Russell

DONNA MARIE GENOVESE, ESQ.
Appearing for the Child

ALSO PRESENT: TARA KATELYN WALSH,
Petitioner

Digitally Recorded Proceeding transcribed by:
VALERI WILSON

Public copy: the child's legal name is shown as E.V.; the date of birth is removed. Otherwise unchanged.

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PETITIONER

Exhibit No.	Description	ID	Evidence
None.			

RESPONDENT

Exhibit No.	Description	ID	Evidence
None.			

(10:05:17a.m.)

COURT OFFICER: Today is Wednesday, January 5th, 2022, White Plains Family Court, held in and for the County of Westchester. The Honorable Michelle I. Schauer presiding. This is 1 through 5 on the calendar in the matters of Walsh and Russell. Counsel, your appearances.

MR. WEDDLE: Chris Weddle, Timko and Moses, 1 North Broadway, White Plains, appearing for the petitioner, Tara Walsh.

MR. ADVOCATE: Jason Advocate, Advocate, LLP, 805 3rd Avenue, New York, New York, 10022, for the respondent, Stephen Russell. Good morning, Your Honor. And, Your Honor, I apologize for being late today. The roads were absolutely --

THE COURT: I know; I myself was late. That's okay.

MR. ADVOCATE: It was awful.

MS. GENOVESE: Donna Genovese, Goldschmidt and Genovese, for the child, [redacted] Good morning.

THE COURT: Good morning. Please be seated. So we were scheduled today for an inquest, actually, with respect to the custody petition by Ms. Walsh and her Family Offense petition, and based on Mr. Russell's failure to appear -- he's never appeared in court before me -- so that's been quite some time.

And, in addition, in the interim --

MR. WEDDLE: I'm sorry, Your Honor, I'm having a little trouble hearing.

THE COURT: -- okay, sorry. I'll speak into the microphone. In the interim, Ms. Genovese filed an Order to Show Cause for contempt, and so that's on my calendar today as well. I do see, Mr. Advocate, you filed a response. Glaringly missing from your response is any response to her arguments regarding contempt. It seems like you're conceding that your client is in contempt.

But before you respond as to that, why isn't your client here?

MR. ADVOCATE: Your Honor, my client is currently stuck in Bora Bora, and he's been having difficulty getting out of there for the last few days, due to COVID reasons and flights being canceled. He's had a hard time getting back here right now, so that's what he's advised me.

THE COURT: And do you have some proof of that?

MR. ADVOCATE: I do not yet, but I can show you proof of some of the missed flights. I don't know, you know, I don't know the availability of getting back.

THE COURT: He's not been the most credible person.

MR. ADVOCATE: I understand.

THE COURT: Your client -- in fact, your papers acknowledge, or state, that all of his family lives in California.

MR. ADVOCATE: What was that again?

THE COURT: Your papers state that all of his family lives in California --

MR. ADVOCATE: Is it all --

THE COURT: -- including his mother. You said that. She appears before me, she has --

MR. ADVOCATE: Right.

THE COURT: -- petitions before me.

MR. ADVOCATE: Right. Doesn't the -- I thought the mother does live in California?

THE COURT: No, she does not. She lives in Pennsylvania, she's been having access to this child, and so that's at least one lie.

MS. GENOVESE: May I also just point out something to the Court? There are two motions that I have that are before this Court, just to be clear. One is an Order to Show Cause, dated December 9th. That's where I asked the Court to determine my compensation and to award a money judgment so that -- because I've never been paid the retainer that the Court had ordered.

And there are two prongs to the contempt, there's contempt for not paying the AFC retainer, and

there's also contempt for not paying for the forensic evaluator. And there's also a request pending for a negative inference. And I didn't mean to interrupt the Court, I just wanted to be clear there's two motions.

THE COURT: Okay. Mr. Advocate?

MR. ADVOCATE: Sorry, Your Honor. I'm just trying to process that. I was involved in this case years ago --

THE COURT: Right.

COURT OFFICER: (Inaudible) could you please stand (inaudible) --

MR. ADVOCATE: Oh, I'm sorry, Judge --

THE COURT: No, that's all right. I prefer that you sit and speak into the microphone, because when everybody's wearing a mask, it just makes it easier to hear.

MR. ADVOCATE: It certainly is. Judge, years ago, when I was involved in the case, the mother was living in California, I believe, and I even heard -- I think there's some testimony actually at the child support hearing -- about how the parties had stayed with her in her place in California for some period of time before moving into their apartment.

So I had always thought the mother was there. I was not aware that she is now moved to Pennsylvania. I

was -- I'm completely a little flummoxed by that.

THE COURT: I only said it because I know it to be the truth that she lives in Pennsylvania, that's been her representation, but at the very best, your client didn't review the papers and didn't correct any inaccuracy. So --

MR. ADVOCATE: I hear you, Judge, and I'm just -- I'm a little flummoxed by that, too. I mean, that's a pretty basic fact that should have been understood by them.

THE COURT: So the case has moved on since you were last involved --

MR. ADVOCATE: I'm sure of that --

THE COURT: -- a lot has happened.

MR. ADVOCATE: -- I'm sure it has.

THE COURT: I don't know if you got transcripts, there are transcripts from every court proceeding. Much of what you say in your reply papers has been addressed and will not be addressed again. We are here for a very specific purpose, and if you would like to -- I would be having a contempt proceeding right now if your client were here, and he would be facing incarceration. I don't know that he has any excuse for violating my court orders, and the argument that this forensic evaluation should be -- that Dr. Verno should not be doing the forensic

evaluation, and that it should be completed by Dr. -- is it Dr. Heimowitz?

MR. ADVOCATE: It was Heimowitz who was the original one.

THE COURT: Dr. Heimowitz was an issue that has come and gone in July of this year, and --

MR. ADVOCATE: Of 2021, you mean, Judge, right?

THE COURT: -- yeah, sorry, 2021. That issue has come and gone, and it was decided that we would not have Dr. Heimowitz do an update, and I believe one of the reasons, if not the main reason, was that he wasn't doing in-person evaluations.

And given your client's manipulation with -- what appears to be manipulation -- with electronic devices, I didn't want him to be doing anything virtually. So I wanted the in-person evaluation, Dr. Verno was capable of doing it. Your client has not availed himself; he continues to reargue -- or you are continuing to reargue -- issues that have long been decided. So I --

MR. ADVOCATE: Well, I do not have access, Judge. You asked me if I had access to all the transcripts. I did see the transcript that was in Ms. Genovese's papers, but I don't have access to all the other transcripts, at this time, yet.

THE COURT: Well, aren’t they ordered?

MR. WEDDLE: Mr. DiFabio ordered every one.

MR. ADVOCATE: I have not received them from Mr. DiFabio. I haven't gotten the full files from him.

THE COURT: Mr. DiFabio ordered them when he was representing Mr. Russell.

MR. ADVOCATE: I --

THE COURT: So I would expect that you would have had the opportunity to get up to speed in this case.

MR. ADVOCATE: I have not -- I have not yet, Your Honor. Okay. Unfortunately, I came in this case, as you know, right before, you know, really right before Christmas vacation, and I've spoken to Mr. DiFabio several times, I'm in the process of trying to get the file from him, and I hope to be able to -- I was hoping to have the file within the next few weeks.

I wasn't clear today either that this was an inquest, I thought it was more of a custody hearing, is what I'd been informed.

THE COURT: Well, yes, an inquest on the custody petition is what I'm doing. My plan was, based upon your client's failure to ever appear in court, was to proceed to inquest today, and we may still do that. And I may adjourn the contempt proceedings. I have no basis to believe that his failure to be here today is legitimate, based upon his past experience. Mr. Weddle, are you

raising your hand?

MR. WEDDLE: Yes, Judge, I was just going to ask Ms. Genovese, I did not bring the opposition papers with me, because it's not really my battle, but I did note that Mr. Russell in his affidavit, he signed his affidavit in Virginia, and I'm not sure what date that document was notarized.

MR. ADVOCATE: I'll actually clarify that. He notarized it via an electronic notary. The electronic notary was probably in Virginia.

MS. GENOVESE: It's in Virginia on December 29th --

MR. ADVOCATE: Yeah.

MS. GENOVESE: -- and quite troubling is the fact that Mr. Russell is in Bora Bora. I would assume that’s for a vacation rather than business, and he hasn't paid for anything. And, quite frankly, I don't see that there's any issue of fact, whatsoever, as to the contempt.

And I did provide a case law for that. When there is no issue of fact, there does not have to be a hearing for contempt. One of the cases was Bell v. Bell, which is in my papers. There is no issue as to why these -- there's no defense why these payments weren't made, and so I have concern. I have concern about Mr. Russell following court orders, and what message it sends to him

when he doesn't, you know, he doesn't comply.

MR. ADVOCATE: Judge, what I would say about -- there's two issues on the contempt -- which are the nonpayment of Ms. Genovese's fees, and the nonpayment of the forensic. There are remedies this Court has, short of contempt, that I think would be equally as effective, and more appropriate in these circumstances. One which is --

THE COURT: Such as?

MR. ADVOCATE: -- the first one, with respect to Ms. Genovese, is -- you read the papers, Judge -- I don't say that -- I don't really address it because it should be paid, but it hasn’t been paid, but a money judgment could be issued. This has happened before in Mr. Russell's case, there was a failure to pay the first counsel, Ms. Lydia Antonocci (sic) -- I'm mispronouncing her name --

THE COURT: Antonovic (sic).

MR. ADVOCATE: What was that?

THE COURT: Antonovic (sic).

MR. ADVOCATE: Antonovic (sic). You're right, Judge. And she has been -- she got a money judgment and she has been paid, I understand, because I spoke to her fairly recently. So there is remedy for that. And on the same side, for the forensic, if a party doesn't pay forensics, usually what I've seen the courts do is usually

hold a negative inference about that, but not to send someone to jail until they do pay it.

THE COURT: You're correct, and, Mr. Russell was aware that I would take a negative inference against him for not, but are you conceding right now that I should issue a money judgment to Ms. Genovese, because I'm happy to do that. I mean, alternatively, if he were here, I could throw him in jail and let him sit in a jail cell. It might make a payment come a little faster than the process to execute a judgment.

MS. GENOVESE: Well, the first --

MR. ADVOCATE: I'm not going to contest the -- that a money judgment should be issued, Judge.

MS. GENOVESE: -- the first motion was for the Court to determine what my compensation is, and to have a money judgment issued in the amount of $19,800. The second application, for contempt, has to do with the nonpayment of both fees for forensic and my fee. It would not negate the contempt if a money judgment is entered.

The statute doesn't require alternate means be pursued first either. And, quite frankly, I don't see a reason why Mr. Russell shouldn't be held accountable for not paying on purpose. And there's no claim that he couldn't afford it, and, quite frankly, the cases that are cited by Counsel are very distinguishable from the facts

of this matter in the opposition.

And there was -- in the matter of Damien P.C. vs. Jennifer H.S. 25 A.D. 3d 525, there was a case where the court had said, let's update a forensic because one year has passed. There's been years that have intervened since the original forensic was ordered, there's need for a forensic. And by not complying with the Court's order, Mr. Russell has thwarted the ability for us to do a forensic in this case.

MR. WEDDLE: Judge, may I?

THE COURT: Yes.

MR. WEDDLE: And, again, it's not my fight, but Mr. Russell has told this Court directly --

MS. GENOVESE: Right.

MR. WEDDLE: -- I'm not participating in a forensic, I'm not coming to court as ordered, I am not going to appear for any other proceedings, other than a trial. This is deliberate and willful acknowledge of his behavior.

MS. GENOVESE: That's correct, and it's in the motion papers I quoted to the transcript, where Mr. Russell said I'm not going to cooperate. He also sent emails -- an email to me on November 29th, where he acknowledged the appointment of a mental health professional, and he said to me, let me know if you would

still like me to meet with the forensic; who is that?

Now that the Court has granted me a trial, you will see that I'm very cooperative. So there's an intent here to do what he wants to do, and via not paying money, he's accomplishing that.

THE COURT: So what would you like me to do today, Ms. Genovese? As I said, Mr. Advocate is not contesting a money judgment.

MS. GENOVESE: Yes. I'm sorry, I didn't mean to -- yeah, I would respectfully request that the money judgment -- I will submit a money judgment Court, in the amount of $19,800, against Mr. Russell o, in the name of my firm.

But there's also an Order to Show Cause that he be held in contempt, and that there be a negative inference. And I would respectfully request that that be granted. I don't see that there's any factual allegations with respect to the contempt.

THE COURT: As to the forensic?

MS. GENOVESE: Yes.

THE COURT: Yes. And I think we could probably proceed to inquest today on Ms. Walsh's petitions, and be done with everything. Except I do want to follow up, it does not appear that Grandma is here today, but -- nor is her lawyer.

MR. WEDDLE: Ms. Genovese actually pointed out to me that Ms. Russell's petition was withdrawn --

MS. GENOVESE: Right.

MR. WEDDLE: -- and what we did is, under my client's custody petition -- the Court issued an order -- excuse me -- on consent, providing for some minimal visitation for Ms. Russell.

THE COURT: Okay.

MS. GENOVESE: It was --

THE COURT: Was that signed?

MR. WEDDLE: Yeah.

MS. GENOVESE: There was a discontinuance in November 30th of 2020, from --

THE COURT: Okay.

MS. GENOVESE: -- Ms. Russell.

THE COURT: So then, if we proceed to inquest today with respect to Ms. Walsh's custody petition and her Family Offense Petition, I believe that would resolve every pending matter.

MR. WEDDLE: It would, Your Honor.

THE COURT: Okay, Mr. Advocate, that is my plan. I don't know what your position is with respect to participating in an inquest without your client here.

MR. ADVOCATE: Your Honor, my client is available by telephone or electronically; is there any way

to --

THE COURT: No.

MR. ADVOCATE: There's no way to --

THE COURT: No, I don't know how many times I can say this, and I know this is your first appearance before me, but you should be aware, and you probably are aware, of the websites that have been posted, and the things that are online that I know Mr. Russell's not acknowledged that they came from him, but it's certainly been clear that he had control over whoever was posting that stuff. I had to issue orders to prevent him from doing that.

Now, I don't follow up. Ms. Genovese, I don't know if you've had any opportunity to see whether or not that's still an active website.

MS. GENOVESE: Yes, it is. So --

MR. ADVOCATE: Sorry -- oh, I'm sorry. I just had a question, Your Honor. Is there -- and I'm just sorry if I'm ignorant on this -- but with respect to court appearances, have things from the Court, like, has there been recordings of the Court made electronically?

MS. GENOVESE: I'm not sure I understand --

THE COURT: You mean, have there been recordings of court proceedings that have been posted online?

MR. ADVOCATE: Yes.

THE COURT: I'm unaware of that, but I don't go on that website. What I see -- what I have seen, I believe, was part of Ms. Genovese's Order to Show Cause.

MS. GENOVESE: There are photographs of the child, there are photographs of your client. There are a section that's devoted to the court. There are sections devoted to what his story is. There's a lot of -- there is negative statements regarding maternal relatives that are very hostile.

It's not something that I would like a child to see. But the website is -- I went back on it to take a look at it -- and it still exists. Some of it's password-protected. I can't -- I don't want to join it -- but you can still read a lot of it. In fact, I brought copies of it with me today for the trial.

THE COURT: So that is one of the reasons I'm not permitting your client to appear electronically. He needs to be here, in person, and under control, so that I can be sure he's not recording. Certainly, he's entitled to order transcripts and, apparently, he has ordered the transcripts of every proceeding.

And there are references to court proceedings online. I'm not saying that he got that through recording, maybe he got that through transcripts, maybe he got that through his attorney, I don't know. But I do

know that what's been posted is inappropriate, it's alienating behavior certainly on behalf of the mother and her family.

And he has made horrific assertions, which I have told him on a number of occasions I would address in an appropriate manner, which would be through a trial. And he has failed to avail himself of the proper legal process.

So, if I wasn't clear, I'm granting your application, Ms. Genovese, to have a money judgment in the amount of $19,800; you can submit that. And we're ready to proceed to inquest. Mr. Advocate, I can give you a minute to talk to your client, if you'd like, to see whether you're going to remain mute, or whether you will participate.

I certainly am taking a negative inference against your client, and I think -- as I said -- I think we can conclude this case this morning.

MR. ADVOCATE: Okay. Do you need -- can I have five minutes, Judge, and I'll try to reach him?

THE COURT: We'll take a five-minute break, and then I'll bring everybody in, and we'll proceed with Ms. Walsh's petitions.

MS. GENOVESE: May I just ask one question? Is the Court reserving on the contempt application?

THE COURT: Well, I mean, I think it's pretty clear he's in contempt, and his attorney is okay with the money judgment. As far as not submitting to the forensic, yes, I think it's been very clear he was not intending to submit to the forensic evaluation; that's been pretty clear.

He has not submitted to the forensic evaluation, so he is in willful contempt of the court order for the forensic, and as a result, I will take a negative inference. All right?

MR. ADVOCATE: I understand that, Judge. I do understand that, and I think that it's been addressed -- the issues that Ms. Genovese has raised have been addressed by the Court.

THE COURT: Okay. Thank you. Second call.

MR. ADVOCATE: So give me a few minutes, Judge, I'll move my stuff out of --

(Off the record 10:24:40 a.m.)

(Whereupon a short recess was taken.)

(On the record 10:38:17 a.m.)

COURT OFFICER: Second call of 1 through 5 on the matters of Walsh and Russell. All appearances remain the same except for that of the petitioner. Ma'am, please you raise your right hand? Do you swear or affirm to tell the truth?

MS. WALSH: I do.

COURT OFFICER: Please state your name and address, unless your address is confidential.

MS. WALSH: My address is confidential; my name is Tara Walsh.

COURT OFFICER: Thank you. Please be seated.

MR. WEDDLE: Officer?

COURT OFFICER: Your Honor.

MR. WEDDLE: Officer --

THE COURT: Mr. Advocate?

MR. ADVOCATE: Yes, Your Honor.

THE COURT: Did you talk to your client?

MR. ADVOCATE: I did, Your Honor. He said I could participate with the hearing, that he -- obviously, to the extent the judge will let me.

THE COURT: All right. Please be seated. Let's begin. Mr. Weddle.

Mr. Weddle Yes, Your Honor. I would call Tara Walsh to testify. How would you like to do this, Judge? Would you like her in the witness stand?

THE COURT: I think that would be good, yes.

COURT OFFICER: (Inaudible) chair (inaudible). You can (inaudible), and please adjust the microphone so we can hear you clearly.

THE WITNESS: Okay.

COURT OFFICER: (Inaudible) has already been sworn.

MR. WEDDLE: May I?

THE COURT: You may proceed, Mr. Weddle.

T A R A W A L S H, a witness herein, was examined and testified as follows:

DIRECT EXAMINATION OF TARA WALSH

BY MR. WEDDLE:

Q Ms. Walsh, what is your relationship to [redacted]?

A I'm her mother.

Q And when was [redacted] born?

A [redacted].

Q And what do you call [redacted]?

A Evie.

Q Okay. And who cares for Evie on a day-to-day basis right now?

A I'm her primary caretaker, and she spends the most time with me. When I'm working, my family watches her, which is either -- my family, she also does have a babysitter, Anna (ph), and my family, being my mother and father primarily, but also my two little sisters.

Q And how long have you been Evie's primary caretaker?

A Since she was born.

Q And what has Evie's father's role been in raising Evie?

A Very minimal.

Q And when's the last time that Evie saw her father?

A September of 2019; he had one visit with her.

Q And is Evie engaged in any educational programs or other activities?

A She is; she's in preschool right now. She's going four days a week, from 9:00 to 11:45, and she's moving up to five days in a few months. She's also going to do camp this summer. She was taking ballet lessons, she was taking swimming lessons this summer, she does a lot of different, you know, she has a lot of different creativity kits and stuff that she does, that we got her.

THE COURT: Why do you have your phone out, Mr. Advocate?

MR. ADVOCATE: I want to look for a document on my phone, Judge; is that all right? Relating to what Ms. Walsh just testified to.

THE COURT: Okay. You understand there's no recording?

MR. ADVOCATE: Of course, Judge. Of course. It's Dropbox, and I have access to my records on Dropbox.

THE COURT: Okay.

MR. ADVOCATE: I would never, ever record a court, you know, ever.

THE COURT: Or have your client available by

speakerphone.

MR. ADVOCATE: Never, Judge. Judge, I know we haven't had many cases together, I would never do that, or anything that I deem to be -- or that the Court might deem to be -- unethical. I don't tow the ethical line ever.

THE COURT: Okay. Thank you. I accept that, as an officer of the court, you're not misrepresenting what you're doing, and we can proceed.

MR. ADVOCATE: Thank you.

THE COURT: Mr. Weddle.

BY MR. WEDDLE:

Q With respect to the activities that you mentioned, Ms. Walsh, who is responsible for enrolling Evie in those activities?

A I am.

Q And who's responsible for getting her to those activities?

A For the most part, I am, sometimes my parents help bringing her and picking her up from nursery school.

Q Okay. And where are you employed?

A I work for myself. I do marketing consulting, branding and marketing consulting.

Q And how long have you been employed in that business?

A I've had my own business, I think, now it's eight years. It's an established S Corp, you know, official

business.

Q Okay. And you mentioned that when you're working that Evie sometimes spends time with your family; is that correct?

A Yes, when I'm working during the day, yeah.

Q And what county do you live in?

A Westchester.

Q Okay. And how far away, in terms of miles, roughly would you say that you live from your family -- your parents?

A It's about, like, 11-minute drive. I'm not sure of the exact mileage, but --

Q Okay. And have you had an opportunity to observe Evie and your parents interacting with each other?

A Yes.

Q And how would you describe Evie's relationship with your parents?

A She has a wonderful relationship with them. They're extremely loving towards her, and they absolutely adore her.

Q And do you have any siblings yourself?

A I do have five siblings. So my four younger siblings, which are two boys and two girls, they all adore Evie, and are, you know, a daily part of her life, with my two sisters and brother, because they live at home when my sisters aren't at college. And then she sees my other brother at least once a week with his wife.

Q Okay. And then, in turn, not just your siblings' reaction to Evie, but how's Evie's reaction to the relationship with her aunts and uncles?

A She loves them. Yeah, she's very, very close with them, and I also have a massive extended family, you know, in the area, so she also sees -- I have three aunts that live within, you know, a 10-minute drive -- so she sees them all the time as well.

Q Okay. And there was a time, at one point, just to orient you, that you and Evie were in San Francisco, correct?

A Yes.

Q And how long were you and Evie in San Francisco?

A Approximately three months.

Q And during the three months that you were in San Francisco, you were in a relationship with Evie's father, correct?

A Yes.

Q And during those three months, what role did Evie's father have, if any, in helping to care for Evie?

A You know, we lived with him, but he not only was never left alone with Evie, aside from one time that the nanny did, which was an issue. I told her not to, but --

Q I'm sorry, I lost it. Can you explain that slowly to me, please?

A So, although we lived with him, he was never left

alone with her, aside from one time the nanny left her alone with him, against my instructions to do so. And, you know, I was very disappointed with her.

Q And, I'm sorry, and what happened, if anything?

A The time that he was left alone with her, he forgot about her and left her in the apartment. Thankfully, it was only for 10 minutes and she was sleeping, because I found out quickly and I rushed there.

Q And how old was Evie, at that time?

A She was probably, I want to say, four months old. It was during the day. It was like in the afternoon.

Q And when did you return to New York after staying with Mr. Russell in San Francisco?

A It was -- I believe it was June 3rd of 2018; I could be wrong on the exact date.

Q And does Evie have a pediatrician?

A She does. She was seeing -- well, she had a pediatrician, first when she was born, we lived in Brooklyn, so she had a pediatrician there, then she had a pediatrician in San Francisco, and since we got back, in June of 2018, she's seeing the family pediatrician, who actually was my pediatrician as well when I was a kid.

Q And who takes her to her doctor's appointments and that sort of thing?

A I do.

Q And is Evie up-to-date with all her immunizations and?

A Yes.

Q And could you describe for the Court Evie's medical health?

A So she's very, very healthy now. She's on target with all of her milestones, you know, healthy weight, height, all that stuff, but she was born with a few small VSDs, tiny little holes in her heart, so she required -- she had to see a pediatric cardiologist after she was born and get, you know, like EKGs and stuff done. All of the holes in her heart have closed, aside from one which is super tiny, that I've been told by a cardiologist isn't an issue, but I have to bring her for a follow-up appointment when she's five years old.

Q When she's five?

A Yeah.

Q Okay. You mentioned that -- the business that you're in now; do you have a college degree?

A Yes.

Q Okay.

A I have a bachelor's degree.

Q Do you -- other than your undergraduate degree -- do you have any graduate degrees?

A No.

Q And since you've graduated from college, have you

been working?

A Yes. I worked -- I first worked at Saks Fifth Avenue as an associate marketing director. I worked there for either five or six years, then I stopped working there and I was a marketing director for a series of small businesses before I branched out and started my own business.

Q And does your business provide enough revenue for you to support Evie and provide for her basic needs, her shelter, her food, and that sort of thing?

A Yes. Obviously, the child support helps a lot, but --

Q Okay.

A -- yeah, I mean. You know, I had time over the more recent few months, because there hasn’t been as many, like, court cases interstate, so my goal is to build up the business to where it was, you know, before Evie was born.

Q Okay. And how is your physical health?

A My physical health is great.

Q Okay. And how is your mental health?

A It's great. I have been diagnosed with having ADHD since I was probably 13, and then bipolar 2 disorder I was diagnosed when I was 18, but I treat both very seriously. I've been seeing doctors and therapists on a monthly basis for -- since I was 18 years old.

Q And how old are you now?

A 37.
Q Sorry, I didn't mean to --
A Yeah.
Q -- put you on the spot there. So the psychiatrist that you see now, how long have you been seeing that doctor?
A I've been seeing him probably for like two-and-a-half years. Before I was seeing another psychiatrist, who actually sees other family members, but I prefer the one that I'm seeing now.
Q Has the psychiatrist you're seeing now, or any prior psychiatrist, ever expressed concern to you that there may be something about your psychiatric conditions that would affect your ability to care properly for Evie?
MR. ADVOCATE: Objection, hearsay.
MR. WEDDLE: Well, it's leading, but it's not hearsay.
THE WITNESS: No, I took --
MR. ADVOCATE: Can we get a ruling, Judge?
THE COURT: I'm sorry, could you repeat your question?
MR. WEDDLE: Yes, Judge, has any of your psychiatrists, either present or former, expressed any concern to you, something about your psychiatric condition, that would affect your ability to care for Evie?

THE COURT: Well, I think, yes or no, it's not. You can answer.

THE WITNESS: No, they haven't.

BY MR. WEDDLE:

Q Okay. And have you ever been hospitalized for your --

A I've never been hospitalized.

Q -- condition? Has Evie -- other than when she was born -- has Evie ever been hospitalized?

A No, she hasn’t. No.

Q Now, when's the last time, that you're aware of, that Mr. Russell was in Westchester County?

A I know that he said a few times he's here, I believe, but the last time that I know for sure was September of 2019.

Q And what happened September of 2019?

A So he had a visit with the supervisor, Claudette Lamelle. I met with Claudette before the visit, and at the time, I had an Order of Protection against him and was living with my parents, Evie and I were, and I was very clear with Claudette that Steve could not come anywhere near my parents' house. There have been issues with him calling the police on family members or myself, and I was very articulate and clear about those instructions. After the only visit he had, he came in the car with Claudette Lamelle to drop Evie off, despite Claudette knowing that he couldn't be in the car, and,

apparently, he was hiding in the van, like somehow -- I'm not exactly sure -- but my brother and cousin saw him at the end of the driveway.

MR. ADVOCATE: Objection, Judge, this is all hearsay.

THE COURT: Sustained.

THE WITNESS: Okay. Whatever, yeah.

BY MR. WEDDLE:

Q But it's your understanding that Mr. Russell, despite having an Order of Protection prohibiting him from doing so, appeared at your parents' house, right?

MR. ADVOCATE: This is just another backdoor of getting the hearsay in, and I object.

MR. WEDDLE: I asked for her understanding, Judge.

MR. ADVOCATE: It's all based on hearsay. Lack of foundation.

MR. WEDDLE: Oh, okay. That's fair.

BY MR. WEDDLE:

Q Where were you living in September of 2018?

A 2019.

Q I'm sorry, 2019.

A I was living at my parents' house on (inaudible) Road, in Chappaqua.

Q Okay. And were you home that evening when Evie

returned?

A I was. I was standing outside the house waiting for her.

Q And when you were standing outside the house, did you see Mr. Russell?

A I did not see him, but I was told --

MR. ADVOCATE: Your Honor --

THE COURT: Sustained.

BY MR. WEDDLE:

Q Yeah, we can't talk about what other people told us.

A Okay. But I can -- 911 was called and there was a domestic incident report filed.

Q And who called 911?

A My brother and cousin.

Q Okay. And when the police arrived, did you have any conversations with them?

A I did, yeah.

Q And, as a result of those conversations, what, if anything, was your understanding of what had happened?

A My understanding was that he was hiding in the van trying to --

MR. ADVOCATE: Objection, Judge, this is all hearsay again.

MR. WEDDLE: I'm asking for her understanding, Judge.

THE COURT: I'll sustain it.

MR. WEDDLE: I beg your pardon, Judge?

THE COURT: Sustained.

MR. WEDDLE: Okay.

BY MR. WEDDLE:

Q Are you familiar with any internet websites that feature Evie?

A Yes.

Q Can you tell me what they are?

A I try not to look at them, but there's the Chappaqua Poison website and the Stevie Loves Evie website. He also has a Vimeo channel, an Instagram, a Facebook, a YouTube. He had Google ads running for the Chappaqua Poison website, trying to direct people to it. I'm trying to think if I'm missing any of the --

Q Is there anything about the --

A Twitter, too. There's a Twitter.

Q -- Twitter as well. Is there anything about these websites that, aside from Evie, are linked to you?

A Yes. Yes, a lot. There's photos of me that I don't know how he obtained. There's, you know, very hurtful, damaging things that are written about me, you know, saying -- calling me all sorts of names and making accusations. I know that a domain name for my name, tarakwalsh.com, I don't know if it's still linked, but it was directing to the

Chappaqua Poison website. Meaning, if someone typed in tarakwalsh.com, it would go to the Chappaqua Poison website, which obviously says.

Q And what makes you believe that the Chappaqua Poison website, or the other one, are linked to Mr. Russell in any way?

A He's been pretty forthcoming that he's the author of them. He -- for instance, he just sent an email to my mother saying he would take the websites down if my mother did a series of things. I don't know. She never showed me the email, but I was told about it.

MR. ADVOCATE: Objection then, Judge, it's hearsay.

BY MR. WEDDLE:

Q Okay. When was this email sent, as far as you know?

A Like two weeks ago, I believe.

Q In the first two weeks.

A Around Christmas.

Q Around Christmas --

A Yeah.

Q -- of 2021.

A Yeah. I know, too, I mean I don't know how else anyone would get court documents and supposed text messages, and all this stuff that he has on the website. I mean, it's pretty -- that he posts on these websites.

Q And in terms of your relationship with Mr. Russell, was he ever physical with you in a violent way?

A Yes, he was.

Q Okay. Could you tell me when the last time he was physical in a violent way with you was?

A I don't know why it always gets me emotional. In March of 2019 -- 2018. He had broken my cell phone, smashed it into pieces, and he was trying to break my laptop, and he smashed me around the kitchen, like up and down, trying to get my laptop, like banging me against walls and stuff, and afterwards, Evie was in the other room, she was sleeping, and after it happened, I ran into the room with her and locked the door, and I wanted to call the police but I didn't have a phone. And then I was convinced by his security guards at the time not to call the police, because they told me if I did that Evie could potentially be taken away, and it would jeopardize my custody, but I had bruises all over my body.

Q Okay. You said that that took place in March of 2018?

A Yes.

Q And did that take place in San Francisco?

A Yeah, yeah.

Q And you now live in New York, and Mr. Russell lives in California, are you still concerned for your physical safety?

A Yeah, yeah. Absolutely. Because I know that when I was living with him that he had handguns and access to handguns, and a bunch of other different weapons, like Tasers, and knives, and when I was pregnant, he threatened physical violence, although he never carried it out. And I know that he's mentally unstable --

MR. ADVOCATE: Objection, Judge; this is not the question. Beyond the scope of the question.

MR. WEDDLE: Well, let's make a -- let's --

THE COURT: Sustained in that respect.

MR. WEDDLE: -- make it the question.

BY MR. WEDDLE:

Q Why do you think Mr. Russell is mentally unstable?

A I mean, that's a very complicated question. I mean, he thought that there are Russians in the CIA, and all these different government agencies have been after him. He has engaged in extremely bizarre behavior.

Q Let me interrupt you. Would you characterize Mr. Russell's behavior as predictable?

A No. No. I mean, in some ways, yes, I think, for instance with the drug abuse stuff, because he would get an Adderall prescription every month, and when he got that he would take the whole entire prescription in like a week. So he would take an insane amount of the pills, you know, so it -- that was kind of something that could be predicted.

Q When you say that he would take -- and you use the word insane -- but let me ask you this a different way, would he take his Adderall as prescribed?

A No. No, he would take like 200, 300 milligrams of Adderall at a time.

Q Speaking of medication, are you on any medication to manage either your ADHD or your bipolar disorder?

A Yes, I take medication.

Q And how many medications do you take?

A I take four medications.

Q And how do those medications affect you?

A There's -- I mean, they make me super stable. I mean, there's little side effects, like a slight tremor in my hand sometimes, but they make it that I get a good nights' sleep every night, you know, I'm up functioning every day for Evie. I can get work done.

Q Is there anything about the side effects from these medications that affects your ability to care for Evie?

A Absolutely not. No.

Q Is there any -- I mean is there anything about these medications -- or any medications that you've ever taken -- that have made it, you know, difficult for you to get up in the middle of the night when Evie is crying, for example?

A No. No, they're all -- I can take care of her, you know. Although, I don't always like to get up in the middle of

the night --

Q Of course.

A -- when she's crying, like every mother, but, yes. Yeah.

Q Is there anything else that you would like the Court to know about your relationship with Evie?

A Just that, you know, I adore her. She's my whole world. You know, I'm motivated to care for her and be the best version of myself on a daily basis. You know, my whole life is dedicated to her. I don't go out; I don't drink or do drugs. You know, I'm -- she's been -- I've had her every night since she was, you know, born, so.

Q And if it could be done safely, would you have any objection to Evie having a relationship with her father?

A No, no, not if it could be done safely. Yeah. And with her best interests in mind, you know, her psychological and physical well-being the priority.

Q Okay.

MR. WEDDLE: Thank you, Your Honor. I have nothing further.

THE COURT: Mr. Advocate.

MR. ADVOCATE: Thank you, Your Honor.

CROSS-EXAMINATION OF TARA K. WALSH

BY MR. ADVOCATE:

Q Ms. Walsh, you stated that Evie was born January

27th, 2018, correct?

A Yes.

Q And you had a relationship with Mr. Russell prior to that, correct?

A On and off, yeah.

Q And then, after Evie was born, shortly after that, you moved in with Mr. Russell in California, in San Francisco; is that correct?

A No, we lived in Brooklyn. That was the whole plan when I was pregnant with her. We had an apartment all set up, and it was my apartment and Evie's apartment.

Q So you never lived in San Francisco; is that what you're saying?

A No, I -- well, this is, I went to stay with Mr. Russell in San Francisco for what was intended to be a brief period of time, and then return back to New York.

Q So when was that? When did you go to San Francisco?

A In early March of 2018.

Q So Evie was born in late January, right?

A Yes.

Q And about five or so weeks after she was born, you moved in with -- you moved over to California, correct?

A I don't like to use the word moved, especially with all the jurisdictional things that --

Q Did you fly there on a plane?

A We did, but it wasn't meant to -- it was meant to be a temporary vacation to San Francisco. I mean, but the intent was never to stay for too long.

Q A temporary vacation. Didn't Mr. Russell rent an apartment in a high-rise in San Francisco after you moved there?

A Yes, but that was an apartment that he rented, not one that I rented or that was intended to be -- so Mr. Russell's impression of me and Evie living in San Francisco --

Q I just asked the one question, did you move into a high-rise?

A Again, we stayed in a high-rise but I -- there was never any intent to stay in San Francisco for a long period of time, and we were --

Q Well --

A -- yeah.

Q -- well, you went to California with the baby, correct?

A Yes.

Q And you stayed there from March until when, approximately?

A June 3rd, or June 4th.

Q And then, at that time, isn't it true that you told Mr. Russell that you were returning for a short period of time

to see your family?

MR. WEDDLE: Judge, I'm going to object to this on the grounds of relevance. I think jurisdiction's been established, if that's where we're going with this.

MR. ADVOCATE: This goes to parenting, Your Honor. It goes to the whole issue of the appropriateness of her parenting and of her denial of rights to Mr. Russell, and this is -- this is all part of the Court's record, by the way. There was litigation on this.

MS. GENOVESE: I would note that I think it goes beyond the scope of the direct.

THE COURT: Yes, I'm sustaining the objection.

MR. ADVOCATE: Your Honor, then, in that case, I would ask to strike all of Ms. Walsh's testimony concerning the limited role that my client had, because the limited role that he has had was a direct result of Ms. Walsh's taking the child from California against my client's wishes. And that's why he had started a custody proceeding out in California the moment that Ms. Walsh went to New York and refused to return.

MR. WEDDLE: May I be heard on that objection?

THE COURT: Yes.

MR. WEDDLE: I believe the question was, during the time that you were in California with Mr. Russell, what role did he have? That question was limited to that

timeframe.

THE COURT: That's my recollection as well, and I believe the record will reflect that.

MR. ADVOCATE: I think it was beyond that, Judge, but, you know, that --

THE COURT: Well, she did talk about the last time he saw the child.

MR. ADVOCATE: And that, again, goes to the same issue, which is, my client was denied the ability to parent after Ms. Walsh took the child. And I think that's a crucial element.

MS. GENOVESE: With respect to the objection, if Mr. Russell were here, he could testify to the objection. If Mr. Russell were here, he could testify to whatever facts that he deemed relevant. He's not here, and it's not Counsel who can testify as to those facts.

MR. ADVOCATE: I'm not trying to testify, Judge, I'm trying to --

THE COURT: That's correct, and as long as I've been involved in this case, he has refused any order to allow him visits.

MR. ADVOCATE: Oh, I don't think --

THE COURT: He has not availed himself of any opportunity to have visits with his daughter --

MR. ADVOCATE: I don't think --

THE COURT: -- here in New York.

MR. ADVOCATE: -- I don't think that's necessarily accurate. I think he has refused further supervised visitation. I think if the parties want to settle this thing today and agree that he can have unsupervised access to his daughter, for just a few times a month, I'm 100 percent certain that we can settle this case.

Or even supervised visitation with the grandmother present would be fine. He has gone through supervision before, and he doesn't believe that supervision any further is necessary.

So I think that's where -- there's a little bit of disconnect, I think, Judge. He is refusing to continue under a regime that requires him to have supervised access, when I don't think there's been any hearing yet as to why there needs to be supervised visitation.

MS. GENOVESE: I would object to Counsel testifying. Most of what Counsel said is testimony. If Mr. Russell were here, eh could testify. He is not, and I would ask that the testimony of Counsel be stricken from the record. There is no question presented to Counsel, and Counsel is testifying on behalf of Mr. Russell right now.

MR. ADVOCATE: I'm arguing, Judge, and that's

what lawyers do, so.

THE COURT: Well, your argument is based upon facts that are not properly before the Court, because they're facts that you're asserting to be true. And I will just say that, although my involvement dates back only until May of 2021, I did review the file, and Mr. Russell's inability to visit with his child had nothing to do with Ms. Walsh, they were court orders requiring supervised visits.

And, as an experienced attorney, Mr. Advocate, you understand that how it works is you have a couple of supervised visits, and if they go well, you progress to unsupervised, and he never gave it a shot to get to that point. So --

MR. ADVOCATE: Your Honor, that actually isn't accurate fully. And this is because I can testify, I was involved in the case prior to that. There were supervised visits that were done. There was supervised visitation, I think, done with at least two people.

One of the sets of visits that Mr. Russell did, in fact, attend to, he did that, there were reports issued, but there was an issue. I don't --

THE COURT: Okay. I'm not litigating --

MR. ADVOCATE: Right. I know.

THE COURT: -- what happened before other

judges.

MR. ADVOCATE: Right.

THE COURT: I can only speak for what happened before me --

MR. ADVOCATE: Right.

THE COURT: -- when I got the case and tried --

MR. ADVOCATE: This is two years before you, Judge.

THE COURT: -- to move it forward.

MR. ADVOCATE: Right this --

THE COURT: Exactly.

MR. ADVOCATE: Right.

THE COURT: So we're talking about a limited period of time since I was involved in the case. He failed to comply with the court order, and we were never able to move forward.

As far as proposed resolution, it's not appropriate to put it on the record, at this point, and I assume that this has been discussed with Mr. Weddle and Ms. Genovese outside of court, and I'm -- because I'm in the middle of a hearing -- assuming that that was not an acceptable settlement. Do you have any more questions?

MR. ADVOCATE: Yes, I do, Your Honor.

BY MR. ADVOCATE:

Q For the approximately three months, Ms. Walsh, that

you were present and living in San Francisco, you were living in the same apartment with Mr. Russell, correct?

A I was never living in San Francisco. There's been a lot of jurisdictional interstate things going on regarding this topic, and it was decided that New York had jurisdiction. Evie was born in New York, I'm a resident of New York, I was visiting San Francisco, I was not living in San Francisco.

Q So between March and June, you were not living in San Francisco, correct?

A I was not. I tried --

THE COURT: All right. Can we just stop with the semantics? You were living in San Francisco. You might not have relocated. It might not have been your house, but you were living in his apartment for three months, is that --

THE WITNESS: Yeah, I'm very careful about what I say regarding --

THE COURT: Jurisdiction is done. The issue is done.

MR. ADVOCATE: I'm not arguing jurisdiction, Judge, as you know. Okay? So --

THE COURT: Right.

MR. ADVOCATE: -- I'm just -- I mean --

THE COURT: I understand where you're going.

MR. ADVOCATE: -- you know what I'm doing here,

Judge.

THE WITNESS: Your Honor, he has opened civil cases against me in San Francisco, one of which he's claiming that Evie was kidnapped from San Francisco by me and my parents. So all this stuff having to do with jurisdiction, you know, still is a sensitive issue, even though the Court said that they were going to dismiss that civil case, but still I'm just very wary, given the amount of litigation, to what I say, so.

BY MR. ADVOCATE:

Q Well, I understand you may be sensitive about it, but I'm just trying to find out, were you living with Mr. Walsh (sic) in San Francisco for that three-month period.

Mr. Russell, I'm sorry.

A Yes.

Q And during that time, both of you were occupying that apartment, right?

A No, we actually stayed in, I want to say maybe four or five different homes --

Q Okay.

A -- when we were there. There was a lot of moving around, due to Mr. Russell's security issues.

Q And that was all in San Francisco?

A San Francisco, Redwood City was one house that we stayed in an Airbnb. Then there were two different apartments

in the Millennial Tower. We stayed with his mother for a period. Trying to think if there was anything else.

Q And the Millennial Tower, that was the famous San Francisco building that's tilting?

A Yes. Yes, that's sinking.

Q Sinking, correct. And during that period of time where you were moving around to different houses, it was always with Mr. Russell, right?

A It was, but that doesn't mean that Mr. Russell was always present. He was often out and not in the home, and when he was in the home, he was not -- he wasn't, like, the nanny actually said in the testimony, he was there but not there.

MR. ADVOCATE: Objection to what the nanny said. I'm not asking you what a nanny said. I'm sorry --

THE WITNESS: Okay.

MR. ADVOCATE: -- Ms. Walsh.

BY MR. ADVOCATE:

Q I'm just saying, Evie was with you, correct?

A Yes.

Q And with Mr. Russell as well in those various houses, right?

A Yes.

Q And Mr. Russell would spend time with his daughter during those three months that he was -- that he and you were out in San Francisco, right?

A I would say that he held her and actually engaged with her maybe 10 minutes a day. I mean, actually holding her, looking at her. There was not -- he didn't go to doctor's appointments, he didn't take her to the playground, shopping, to the museums, like, he didn't -- he didn't read to her -- he didn't put her to bed, he didn't give her a bath, he didn't feed her a bottle, he didn't burp her, he didn't push her around in a stroller. I mean, yes, he was there, but his -- he wasn't what I would consider to be an active father.

Q Were you present with her at every moment of the day -- with Evie?

A There was a nanny that lived with us, and Mr. Russell's behavior at the time was very disturbing, so me managing him and making sure that Evie was safe, I mean, at the time the nanny played --

Q I'm not -- Ms. Walsh, can you answer my question?

A Yes, yes.

Q -- were you present -- were you present with the child 24 hours a day, seven days a week when you were in San Francisco?

A Yeah, I would say that there was maybe like an hour a day here and there where I would go out and like get a manicure, or like shop for an hour, where I wasn't with her, but I was physically with her, yes.

Q So you had a full-time nanny, right, that's 24/7, who

was there every day of the week for seven days a week --
A Yes.
Q -- to cover one hour a day when you weren't with the child; is that what you're saying?
A No, I was also working. I was trying to build back my business --
Q Okay.
A -- so I was working during the day and --
Q You weren't present with Evie every minute of the day, right?
A I was -- like I said -- I was physically near her, in the apartment with her, aside -- I mean, I was physically separated from her, right, like for more than 20 feet, 30 feet --
Q And sometimes --
A -- you know, an hour.
Q -- and sometimes you were doing work for your business, right?
A Yes, but I mean, I was --
Q And sometimes you were calling your parents and speaking to them, right?
A -- the nanny was calling her parents, since we -- I mean --
Q I'm not asking about the nanny's parents, Ms. Walsh, I'm just asking about yours. Did you sometimes make telephone

calls?

MR. WEDDLE: Judge, could I ask you to instruct the witness to answer the question she is asked?

THE COURT: Yes, just --

THE WITNESS: Yes, I made telephone calls.

BY MR. ADVOCATE:

Q And sometimes you watched TV, right?

A Yes.

Q And sometimes you weren't always focused 100 percent always on the child, right, because you had a nanny present, right?

A I think that's fair to say.

Q Yeah, and you're not putting -- there wasn't a stopwatch in your hand every time Stephen went over to the child and, you know, held her, or cooed with her. You weren't sitting there with a stopwatch timing how long he was spending with the child, right?

A I wasn't, but it was something that bothered me and was upsetting for me to witness, so it's definitely something that I paid closer attention to. Particularly, it was very upsetting for me, and I know not all fathers do this, but when he wouldn't come to the pediatrician appointments, or the cardiologist, the nanny would come with me, but it was -- it always bothered me that he wouldn't participate in that.

Q And then there came a time when you left San

Francisco and you went to New York, right?

A Yes.

Q Right. So while you were in San Francisco, Stephen had really 24/7 access to the baby, right?

A Yes.

Q And then once you went to New York, that stopped, right?

A No. No, it didn't stop. When we came to -- in the original agreement before the Court was -- if I recall, and even when I came back before there was family court action open before this Court, he was told by my parents that he could come spend time with Evie whenever he wanted to.

Q I'm not asking whether, you know, you say that you allowed him to, but you came to New York, you said, in around June of 20 -- what was it, '19, right?

A 2018.

Q 2018. And after you came to New York in June, to the end of that month, did Steve see the child at all?

A No, but he had opportunities to. I mean, he was -- he was told -- he was -- he has never been told by me, you cannot see your daughter, I won't let you see your daughter. I mean, all the things, he's -- maybe the Court has -- and maybe I felt compelled through the Court, but --

Q Well, the Court only is acting on what you've asked the Court to do, right?

MR. WEDDLE: Objection. That's not the Court's role. The Court sits in parens patriae of the child.

THE COURT: Sustained.

MR. ADVOCATE: The Court, actually, Judge, does not just simply stand in parens patriae, it acts on requests of the parties. We have an adversarial system in the United States, one party asks for certain relief, and the Court decides whether to grant it or not. The Court doesn't simply just act on its own.

THE COURT: Sustained.

BY MR. ADVOCATE:

Q Ms. Walsh, in June of 2018, Mr. Russell started an action for custody in California, right?

A I believe that was June, yeah.

Q Right. And you started an action in New York as well, correct?

A Yes.

Q And with that, you started -- you also had an Order of Protection that you started at the same time, correct?

A I first filed for the Order of Protection because that was --

Q And that was an Order of Protection to keep Mr. Russell away from both you and the child, right?

A Yes, it was, and it was -- I would like to note that when I was pregnant I saw --

Q I'm just asking what you did, I'm not asking --
A No, I would like --
Q -- everything else. I'm just asking you about, did you file a petition for an Order of Protection against Mr. Russell on behalf of you and the child, right?
A Yes. If I --
Q So --
A -- can make a note, Your Honor?
THE COURT: Okay.
MR. ADVOCATE: No --
THE COURT: -- You can only answer the question.
THE WITNESS: Okay.
THE COURT: Your attorney will follow-up if he thinks --
THE WITNESS: Okay.
THE COURT: -- it's appropriate.
BY MR. ADVOCATE:
Q So your testimony is now that you asked the Court to bar Mr. Russell from having contact with the child and you, but at the same time you said your parents were offering that he could see the child whenever he wanted to; is that what you're saying?
A As long as I wasn’t present, and that they knew that Evie was safe, and that he was being supervised.
Q So now how would Mr. Russell have had access to the

child in June, when you had an Order of Protection?

A Through my parents. He could have -- my, at the time, you know, my father was very open and willing to doing whatever he could to facilitate a relationship between Steve and Evie.

Q And --

A So they had dialogue going on, and I know that there was probably in the court records -- I think the initial -- the initial custody appearance, or whatever Judge Gordon-Oliver signed, said that, I believe, that visitation should happen between Steve and my parents, like organizing something like that.

Q So, if I'm -- just to be clear -- you are saying to the Court that you felt it was appropriate. You, Tara Walsh, felt it was appropriate for the Court to issue an Order of Protection preventing Mr. Russell from having visits, or having any contact even, with Evie, but you're saying your father would do it anyway, and that was something that was fine with you? Is that what you're saying?

A I think you're putting words in my mouth. If you could just ask me individual questions. I think you're creating a dialogue that doesn't really make sense with my intent.

Q Now, there did come a time when Mr. Russell did have some supervised visitation that he agreed to participate in,

correct?

A Yes.

Q And I believe that was done through -- I believe it was Comprehensive Family Services; do you recall that?

A I don't remember.

Q Okay. And there were several visits that Mr. Russell had with that particular supervisor.

A I don't remember that particular supervisor. I know that there were a few different supervisors that all had, you know, there were various issues going on.

Q But he had several visits, correct?

A Yes. Yes --

Q Right.

A -- he had several -- I mean, I think in total --

Q And during those visits that he had -- those several visits -- Evie was never harmed, correct?

A No. No.

Q And the supervisors never expressed any concern in their reports to you about anything untoward that Mr. Russell did towards the child during any of the visits, right?

MS. GENOVESE: Objection, hearsay.

THE COURT: Sustained.

MS. GENOVESE: There's no reports. There's no supervisors here to testify, and there's no Mr. Russell here to testify.

THE WITNESS: I never saw --
MR. ADVOCATE: Hold on, wait.
THE COURT: I'm sustaining the objection, so you don't answer.
BY MR. ADVOCATE:
Q I'm sorry, you never saw any reports; is that what it was?
A She said I don't answer the question. The judge said.
Q I know, you -- but I'm going to ask you -- did you ever see any reports from a supervisor?
A No.
Q Did any supervisor ever express any concern to you about Mr. Russell's -- his contact with the child during the visits?
MS. GENOVESE: Same question, just repackaged.
MR. ADVOCATE: Judge, it's the same question virtually that --
THE COURT: Counsel, do you --
MR. ADVOCATE: -- I'm sorry. Yeah, Your Honor, I'm sorry.
THE COURT: -- (inaudible).
MS. GENOVESE: I just want to, for the record, you're asking a question that would call for a hearsay response. There's no supervisor that's present, your

client's not present, there's no report that's been introduced into evidence, and I would object to that question.

MR. ADVOCATE: And I'm going to just respond, Judge, very briefly by saying it's virtually the same question that Mr. Weddle asked when he asked his client if someone had said -- had expressed any concerns to her -- I think it was her doctor had ever expressed any concerns about her, and the Court allowed it. I'm asking the exact, mirror image --

THE COURT: I don't think you objected.

MR. ADVOCATE: -- question about the supervisor.

THE COURT: I would have sustained a hearsay objection, but I'm sustaining this objection.

BY MR. ADVOCATE:

Q Now, you mentioned that there's a pediatrician that -- you have a pediatrician in New York, correct?

A Correct.

Q When you were in San Francisco, did you have a pediatrician out there?

A Yes. She was still very young so she needed to have, you know.

Q Of course, we understand. Now you mentioned, Ms. Walsh, that you have two diagnoses of, I think it was -- was it ADHD and bipolar disorder 2?

A Yes.
Q Have you ever been diagnosed with a borderline personality?
A No.
Q You mentioned you're on four medications. What are those medications?
THE WITNESS: Do I have to answer that? I mean, whatever.
MR. WEDDLE: Yeah, Judge, I'm sorry, we've testified as to the effects, what's the relevance?
MR. ADVOCATE: Judge, do you want me to answer that?
THE COURT: Yes.
MR. ADVOCATE: I can't judge what the possible side effects are unless I know what the drugs -- unless I know what the drugs are, Judge. And, at this moment in time, she's testified that she's on four medications, we have a right to know what those medications are.
MR. WEDDLE: Is Counsel a physician?
MR. ADVOCATE: No, but I have access to information about what the potential side effects might be, so I think, Judge, to the extent that they've opened this door, I have to be allowed the opportunity to explore it. They didn’t have to ask the question, but now that it's been out there, and there's medications that are

mentioned, I want to know what they are, and I think we're entitled to. I think the Court would like to know as well.

MR. WEDDLE: Judge, with respect to access to information, I don't know what that means. I do not see another witness outside. If that means Googling WebMD, that's just not appropriate. That would lead to Mr. Advocate testifying as to what he read on the internet.

MR. ADVOCATE: I'm not going to testify, Judge, but I will ask questions.

THE COURT: I think you can just ask general questions about any side effects of any medication.

MR. ADVOCATE: Judge --

THE COURT: Listen, I am mindful of the fact that we're sitting here in an inquest that there is no other relief to be granted here today other than custody to Ms. Walsh. So your client is not here, he's not even filed a petition seeking custody, so where are you going with this? But if you'd like to ask her about any negative side effects of any medications, I think that's sufficient without getting into it. Mr. Weddle is correct; do you have a medical expert out there to talk about the possible side effects?

MR. ADVOCATE: No, I do not, Judge, but, to the

extent that, you know, we're talking about drugs which have known side effects, which are reported, and I can ask about whether she's experiencing those particular side effects of a medication, but I don't know what to ask without knowing what the medications are. I also don't know what the purposes of any prescriptions are, if they're all for bipolar and some are for ADHD, it leaves me totally in the dark.

So, you know, if Your Honor wants to sustain the objection, I will move on, but at the end of the day, I do think that, having raised the issue, I'm allowed to explore that information.

THE COURT: I said I would allow you to ask about specific side effects that you think some drugs could have that would be having a negative impact on her ability to parent, but otherwise, it's irrelevant.

MR. ADVOCATE: How do I know what to ask? If we're talking about, you know, Klonopin, I can tell you -- I can ask some questions about what the side effects might be, but if it's Zyrtec, it's a totally different line of questions. I just have no way of knowing.

MR. WEDDLE: But she's already testified as to what the side effects are.

MR. ADVOCATE: She testified to, you know, her hand sometimes has a tremor, there are always other side

effects. And, by the way --

MR. WEDDLE: There are always other side effects?

MR. ADVOCATE: There are always other stuff. Potential side effects.

MR. WEDDLE: Oh.

THE COURT: (Inaudible).

MR. ADVOCATE: I'm dealing with this in another case, Judge, so actually I am fairly knowledgeable about some of this stuff. But if you want to just sustain the objection, we will move on. I don't want to belabor the Court's time too much --

THE COURT: Yes, let's move on, please.

MR. ADVOCATE: -- I know we have limited time. So, Judge, just for the record to be clear, you sustained the objection on the issue of the question of what medications she's on, correct?

THE COURT: Yes.

MR. ADVOCATE: All right. Let me move on.

BY MR. ADVOCATE:

Q Ms. Walsh, when you were in California with Mr. Russell, you were also taking medication for your ADHD and bipolar diagnoses, right?

A Yes.

Q Was it the same medication you're taking now?

A Pretty much, yes.

Q Isn't it true that, while you were there with Mr. Russell, you put some of your medication into his drinks and you dosed him with your medication?

MR. WEDDLE: Objection, Your Honor. This is very, very old wine in a new bottle. The Courts of California have addressed this. I believe this Court has addressed this. There is a res judicata issue. I don't have any idea why we're rehashing this now. It was established.

THE COURT: And it's outside the scope of direct.

MR. WEDDLE: Well, well beyond that as well, too, Judge.

MS. GENOVESE: If Mr. Russell had wanted to present some facts, he would have showed up.

MR. ADVOCATE: Well --

MS. GENOVESE: That is beyond the direct.

THE COURT: Yes, so this is a backdoor way, Mr. Advocate, to try to get in testimony that your client might have presented had he been here, and I'm not going to allow it.

MR. ADVOCATE: Your Honor, I understand that it may seem, in certain respects, like it's a backdoor way, but you can get information in the front door through the

other side's -- from the other side's client -- on a cross-examination, and you can also get it from a direct. To the extent that Ms. Walsh is saying my client was acting erratically, that may be one of the reasons that he was active erratically, and I'd like to get a response to the question.

MS. GENOVESE: Again, if Mr. Russell were here, he could testify. Mr. Russell was noticed of this court date multiple times, and he's not here to testify and present facts. But you are putting facts into evidence that have not been testified under direct. It is beyond the scope of direct, and --

MR. ADVOCATE: It is --

MS. GENOVESE: -- that is why I --

THE COURT: The objection is sustained.

MR. ADVOCATE: -- Your Honor, it's not beyond the scope.

THE COURT: You don't get to present his case without a client, Mr. Advocate. These issues were not raised on direct; you're limited in your scope of cross-examination.

MR. ADVOCATE: It was raised though, because there was allegations that he was irrational, and he's not -- and he's mentally unstable. And that, in fact, may have been directly, and my questions are whether she in

fact caused that mental imbalance at a period of time because she does --

THE COURT: Well, then ask her what she thinks caused it.

MR. ADVOCATE: Judge, I --

THE COURT: I'm not allowing it, Mr. Advocate, move on.

BY MR. ADVOCATE:

Q Ms. Walsh, you stated that you're not against Mr. Russell having a relationship with Evie if it's, quote, safe; do you remember saying something like that?

A Sorry, can you rephrase that? I wasn't --

Q I believe you said that you were not opposed to Mr. Russell having a relationship with Evie if -- as long as it was safe?

A Yeah, I didn't elaborate upon that, I mean, obviously, yes, I need -- Evie's safety is my priority.

Q So you are -- you're agreeing that it would be a good thing for Evie to have a relationship with her father, correct?

A I think it's a good thing for a child to always have a healthy, safe relationship with their father.

Q We're not talking about any child, I'm talking about your child.

A I haven't -- I don't know how to answer this.

Q I thought you answered it earlier on Mr. Weddle's question, when he asked, are you opposed to Mr. Russell having a relationship with Evie.

A I think that that relationship, due to his behaviors and my belief on his ability to parent, I think that his relationship needs to be facilitated in a certain way, where there are boundaries and supervision to assure that Evie is safe. I don't think that he can just have a typical father-daughter relationship, I guess.

Q Well, so what are you saying that it would take to satisfy you that Evie was safe in Mr. Russell's care?

A I mean, that’s a very open-ended question.

Q I'm trying to make it as easy as possible. What are you saying you would agree to for Mr. Russell having a relationship with Evie, and to ensure that she was safe? I mean, that was your word, it was, you have no objection to Steve having a relationship with Evie if it is done safely. Do you remember saying those words?

MR. WEDDLE: I'm going to object to the phrase -- the form of the question -- just because it sounds like Counsel is now trying to negotiate --

MR. ADVOCATE: You're right, Mr. Weddle.

MR. WEDDLE: -- settlement with my client --

MR. ADVOCATE: You're right, Mr. Weddle, I'm going to withdraw the question. He's so right that I just

have to rephrase, Judge.

BY MR. ADVOCATE:

Q Ms. Walsh, do you recall testifying on your direct that you have no objection to Steve having a relationship with Evie, if it is done safely?

A Yes, I think that's an important --

Q So what did you mean -- I'm going to follow up. Wait, wait, wait --

THE COURT: Okay, wait. There's no question. You said yes, that's --

BY MR. ADVOCATE:

Q You said yes, and let me follow-up now for one second. Okay? So what did you mean by, if it is, quote, done safely?

A I think that that's the same question as before. What do I mean by if it's done safely?

Q Yes, those were your words. I'm asking what you meant by those words.

A I mean, done safely, so it would be done under the way that I would care for Evie, or her grandparents, or, you know. It's a very complicated thing due to her father's behavior, I mean, there's so many moving aspects. Like, for instance, pictures of her posted on the internet after a visit, or comments that she wrote, or when he, apparently, spoke with her recently, he told her she was going to move to San

Francisco on some -- with the visit with the mother -- and she came back and said, Mommy, am I moving to San Francisco? I mean, there's so many moving factors, let alone the fact that he could leave her alone and walk away and forget about her, which is what I witnessed. I mean, it's -- it's very, very complicated. Safety is all in context of the situation, right? I mean, if you're on a rollercoaster, it's different safety than you would require if you were walking on a street. I mean it's, it's a very -- at least that's how I look at that question.

Q So, you said that Mr. Russell had a conversation with the child, at some point, and she said something about moving to San Francisco, right?

A He -- his mother had a visit where he was told that he couldn't be present, but he, apparently, was on FaceTime with her on an iPad for a few hours.

Q When was that?

A I believe Chris was asking me. I think that it was in September, if I remember correctly.

Q September of this past year, 2021?

A Yes.

Q Okay. And were you -- do you hear -- I mean, were you present for that phone call?

A No.

Q Okay. And how old is Evie right now? She's three-

and-a-half or four?

A She's four --

Q Four.

A -- later this month.

Q And do you know whether Mr. Russell told the child that the child was moving there, or whether she might come to visit one day?

MR. WEDDLE: Objection. She said she did not hear the phone call.

THE COURT: Sustained.

MR. ADVOCATE: One minute, Your Honor.

BY MR. ADVOCATE:

Q Now, Ms. Walsh, you mentioned that Mr. Russell had been physical with you once, correct?

A Yes.

Q And when was that?

A Around March 8th or 9th of 2018.

Q I see. There's no police report that was filed at that time, right?

A There wasn't, but I wanted to file one. I addressed it --

Q But you didn't, right?

A Because I was told that it could jeopardize my custody.

Q Fine. And you have no pictures of any bruising that

you mentioned today?

A I did take pictures of bruises on my leg.

Q And you didn’t introduce any of these into your testimony today though, correct?

A I can find them on my phone and give them to Chris. I don't know if they're -- it was -- I had so many bruises on my --

Q I'm just asking whether you introduced any into evidence during your direct exam.

A Yes.

Q You did?

A Oh, that's -- I don't believe that Chris introduced them, no. But I do have them, and I have --

Q There's no question pending.

MR. ADVOCATE: One second, Your Honor. I'm almost done. Nothing further, Your Honor.

THE COURT: Thank you. Ms. Genovese.

CROSS-EXAMINATION OF TARA K. WALSH

BY MS. GENOVESE:

Q Ms. Walsh, you testified that you have viewed certain websites, correct?

A Yes.

Q And when was the last time that you viewed those websites?

A I looked -- I looked yesterday -- or rather my little

brother tried to pull it up yesterday, but I think it would be the day before yesterday that I looked.

Q You say you saw the websites, what did you see the day before yesterday? What did you --

A Well, I was specifically concerned that --

Q What did you see?

A Oh, so I saw a picture of Evie on one of the websites. I saw a post -- a series of posts that were not kind. And, you know, I saw Evie's name mentioned a lot, her first and last name, and, you know, my first and last name, and family members' first and last name. Those are what, you know, really stands up.

Q You say you saw a picture of Evie, was Evie wearing a T-shirt that says Stevie Loves Evie on it?

A I think she may have been. I know that there's more than one photo of Evie.

Q So there are photographs of Evie; is that correct?

A On the website, yes, there are.

Q And there are photographs also of Mr. Russell; is that correct?

A Yes.

Q And there are photographs of Mr. Russell with Evie, correct?

A I believe so. I didn't see them two days ago, but I saw them before.

Q Okay.
A Yeah.
Q And you've seen those photographs.
A Yes.
Q There were also photographs of other family members, that's correct?
A Yes, and videos.
Q There are photographs of the maternal grandmother, correct?
A I think there may have been. I know there was a letter, an email I remember seeing, but.
Q And there are photographs depicting your father, Evie's grandfather, correct?
A Yes.
Q And there are photographs depicting your brother. Your brother, I think, is Brendon (ph)?
A Brendon, yes.
Q Brendon on the website, right?
A Yes.
Q And, in fact, when you look at the website, do you see any documents from another court proceeding?
A Yes. There's transcripts from family court. There's transcripts in both states, there's pictures of an attorney that was helping me in California. There's pictures of various judges from the family court. I don't think Judge Schauer,

but, yeah. There's -- I'm trying to think what other -- well, the depositions, obviously, he took depositions for a civil case, and he posted the full depositions of my father, mother, and brother, and friend on Vimeo, with their first and last names.

Q So those deposition transcripts are on the website for people to view; is that correct?

A Yes.

Q And is there commentary with respect to those, when those -- when you look -- withdrawn. When you look at the -- you say that there's like depictions of photographs of family members, is there commentary under that depiction of a relative? Is there some type of writing that's on the website?

A Yes.

Q Okay. And the writing on the website, would you deem it as complimentary?

A No.

MR. ADVOCATE: Objection, Your Honor.

MS. GENOVESE: It's cross.

THE COURT: Overruled.

MR. ADVOCATE: I'm not saying you can't lead, I just think it's a vague question.

BY MS. GENOVESE:

Q I'll ask the witness what type of commentary is there on the website.

A So for my father, it says his first and last name, his profession, and calls him a criminal, and says he committed felonies with the DOJ, something, something. I know my father's never committed a felony. He calls my little brother Brendon, trying to get into medical school, he uses his first and last name and calls him creepy, and maybe like a serial killer or something. My mother, he uses her first and last name, he says that she's -- she poisons her children -- and, you know, she has Munchausen by proxy, I think he repeats. My friend, he calls a criminal. Me, I mean, he calls -- he says I have borderline personality disorder, I'm, you know, tried to defraud him and commit multiple crimes against him.

Q Has anyone -- withdrawn. Has a nonparty ever come up to you and indicated that they've seen these websites?

A Yes.

Q And this nonparty, did this nonparty have anything -- any kind of a relationship with Evie?

A Yeah, so a friend, one of Evie's closest friends, who I prefer not to say his name, his mother came up to me and she had come across the website, and she expressed concern --

MR. ADVOCATE: Objection, Judge, to the hearsay.

THE COURT: Sustained.

MS. GENOVESE: She expressed concern is not hearsay, it's just --

THE WITNESS: She told me, and she expressed

concern to me directly. She came to me and said she was concerned.

MR. ADVOCATE: Objection again.

THE COURT: Okay. That's -- sustained.

MR. ADVOCATE: I mean, we're getting to the hearsay.

MS. GENOVESE: Yep.

BY MS. GENOVESE:

Q You testified that there was some type of a FaceTime with Mr. Walsh (sic) in September of 2021; is that correct?

A Mr. Russell, yes. Yes.

Q After, in that month of September, did Evie express concerns to you?

A So after the visit with her grandmother, it was very odd because every day, you know, when my parents watch her, I'm not with her for a period of time, I say, what did you do, did you do anything exciting, and after the visit with her grandmother, you know, I said the same thing, what did you do, and she said I can't talk about it. I can't talk about it, Mommy. I can't. Which was very odd. And then, as the weeks went by, she told me that she was told that she couldn't talk about it. I don't really know how she kept that promise what was told to her, because she's, again, she's three, so it's very odd for her to withhold information, but it was a little strange and concerning. And then, you know, things started

coming out, like the Mommy am I going to move to San Francisco. She did say, which I'm very hesitant to say, and I don't want to, that her dad, she calls him Steve -- my dad, Steve Russell -- because she's very --

MS. GENOVESE: I'm going to object to -- we're getting into conversations with -- of my client --

THE WITNESS: Okay.

MS. GENOVESE: -- at this point.

THE WITNESS: Okay. Yeah.

MR. WEDDLE: I'm sorry, I just don't understand the objection. Conversations between the witness and your client?

MS. GENOVESE: Yes. Withdrawn.

BY MS. GENOVESE:

Q Well, you said that Evie expressed concerns, any other observations?

A She said to me that --

MR. ADVOCATE: Objection to the hearsay, Judge.

MS. GENOVESE: Observations?

MR. ADVOCATE: No, about she said. The answer starting with the words, she said.

THE COURT: Sustained.

BY MS. GENOVESE:

Q You testified that Evie's in preschool; how's she doing in preschool?

A She's doing wonderfully. I just had a meeting with her teacher a few weeks ago, and she said she's one of her favorite students, that she's 10 steps ahead of all the other kids, that she loves having her in her class, and that she's very bright.

Q You also testified that Evie has pediatricians, and I think you said a pediatric cardiologist?

A Yes.

Q Who selected the pediatrician and the cardiologist?

A I did.

Q And the preschool, who selected the preschool for Evie?

A I did. I mean, my mother helped me because she knows the area, but we looked at a few different schools, and I selected the final one.

Q You testified that you take medications; do you take the medications as they are prescribed?

A Absolutely.

Q And if you were to be granted custody of Evie, would you take the medication as prescribed by your physician?

A Absolutely, yes.

Q And you would agree to follow the recommendations of your physician with respect to the medications?

A Absolutely, yes.

Q Just one more question with respect to the websites.

Is there also a podcast that's on the internet?

A Yes. I forgot about that. And there's also a graphic novel, but there's a podcast. I haven't seen any full episodes.

Q When you look at the podcast -- when you look online -- is there a caricature of Evie?

A Yes, yes.

Q So there is some type of a picture that depicts Evie, or a caricature?

A Yes.

Q Drawing?

A Yes.

Q Illustration?

A Many, yes.

MS. GENOVESE: I have nothing further.

THE COURT: Mr. Weddle.

REDIRECT EXAMINATION OF TARA K. WALSH

BY MR. WEDDLE:

Q When you filed your Family Offense petition, did you believe that you were doing so in order to interfere in Evie's relationship with her father?

A No.

Q There was something you wanted to add about filing that Family Offense petition earlier; what was it?

A Yeah, so when I was pregnant, I saw a psychiatrist, I

forgot the type, but they -- it was a psychiatrist that specializes in pregnancy. Her name was Dr. Jennifer Rhodes, and I saw her on a weekly basis when I was pregnant, and she, you know, we did talk therapy, and she monitored my medications. And she also met with my older sister, and, you know, we had a plan for when Evie was born, the hospital, where Evie would sleep, every little detail, you know, of Evie's care. And she told me on numerous --

MR. ADVOCATE: Objection to the hearsay, Judge.

BY MR. WEDDLE:

Q You can't testify as to what somebody else said to you.

A Okay.

Q But you can testify as to why you filed the Family Offense petition and what was going on in your mind.

A So I -- there were numerous, highly-qualified professionals -- that had given me their opinion that I should have an Order of Protection against Mr. Russell.

MR. ADVOCATE: Objection, Your Honor, this is all hearsay. Move to strike.

MR. WEDDLE: As a result -- sorry.

THE COURT: Sustained as to the hearsay.

BY MR. WEDDLE:

Q As a result of your conversations with various medical professionals, did you then decide to file the Family

Offense petition?

A I didn't. I was, again, this began when I was pregnant, and I didn’t. I also was advised that Mr. Russell should not be in the hospital at Evie's birth. I let him come to the hospital and I wouldn't file an Order of Protection against him at the time.

Q So is it fair to say that you were doing everything in your power not to exclude Mr. Russell from Evie's life?

A Yes. Despite the fact that it was, I don't know if you could say risking my reflection as a parent for having him around, or --

Q But if I understand your testimony correctly, is it fair to say that you didn't -- you held off and did not file a Family Offense petition until you felt unsafe?

A Until I felt really unsafe, like my life was in danger, and Evie, yeah. I don't know that I would -- yeah.

Q And you testified about a friend of Evie's mother contacting you about these websites, right? Did you have a concern that Evie's friend, that this other child, if that child was with Evie, that that other child's pictures might end up on these websites?

A Absolutely. I mean, anybody that -- anybody that Mr. Russell -- anybody that Mr. Russell has been informed of first and last names, having to do with anyone close to me, anyone friends with Evie, her doctors, anybody, he has posted

things about them on the internet. So it's without a doubt that if he had a picture of Evie's friend's mother, for some reason didn't like her, that he would post a picture of Evie's friend's mother and Evie's friend on the internet, yes.

Q You were asked on cross-examination by Mr. Advocate a question, in which I believe he said you had testified on direct that Mr. Russell had been physical with you once. My question is, the one incident that you described for the Court, was that the only time Mr. Russell was ever physically violent with you?

A It was the time. He had threatened physical violence, like he would often say, when I was pregnant, that he was going to -- he would hold his hand with his telephone and say he was going to smash his cell phone in my face. And he would throw things against the wall. He -- yeah, the cell phone smashing in the face thing was a repeated comment, but I think it's -- when he was physical with me, I was recovering from my C-section still, and I wasn't -- I was so injured that I could barely walk. I was limping for like two weeks. And it was particularly memorable because I think it was like five weeks or six weeks after my C-section that I could run again and exercise, and I tried to run and I couldn't run because, you know, my body was so hurt.

MR. WEDDLE: Thank you, Your Honor. I have nothing further. And we rest, of course.

THE COURT: Mr. Advocate.

RECROSS EXAMINATION OF TARA K. WALSH

BY MR. ADVOCATE:

Q So, Ms. Walsh, you're saying that Mr. Russell was physical with you while you were recovering from your C-section, correct?

A Yes.

Q And it was so bad, you couldn't even run afterwards, right?

A I had -- and I had to wear long dresses that covered my bruises.

Q And then you still decided to move out with him to San Francisco for a few months, right?

A That was when I got to San Francisco. And pretty much after that happened, I was trying to leave, in whatever way that I could.

Q But you didn't leave in April or May, right?

A Yes, because there were constant threats to taking our daughter away from me if I left.

Q So, in other words, Mr. Russell was saying he was going to go to court and take custody of Evie, right?

A He -- well, it wasn't just that -- he said he would take her and I would never see her, and, you know, the -- I'll take her, you'll never see her. I have more money than you, I can hire legal teams. I'll crush you in court. No matter what

you do, I'll crush you in court. You know, stuff like that. It was -- and, at the time, I was really vulnerable, and I believed it.

Q So, Ms. Walsh, let me ask you another question. Do you have any social media accounts, Facebook, Instagram, or anything like that?

A I do, but it's more so because --

Q I just asked the question, do you?

A Yes.

Q And does your family? Do they have any of those accounts too, like Facebook and Instagram?

A Yeah, yeah.

Q And do they ever post pictures of Evie?

A You know, I don't really look at their social media profiles, but I know that if they did post a picture of Evie, that they wouldn't have any negative commentary or inferences, or it would be something, you know, very -- posted with well-intent. But I don't think, for the most part, that they do. I don't know. I would have to go -- I have a lot of family members.

Q Have you ever posted any photos of Evie?

A I have, yeah, but mostly my profiles are private, and it's mostly because I have such a big family, like I probably have, I would say close to like 200 family members within 30 miles of here, including all my cousins and their kids. So I;

post things so that like kind of all my family can see.

Q And all your friends on Instagram and Facebook can see too, right?

A Yeah, but I don't really -- it's more so Instagram. I don't really -- and I very, very -- I don't -- yeah, I would have to look.

Q As they say, Facebook's for the over 50 crowd now, so mostly Instagram, right?

A Yeah, yeah. But I don't even think that I have any photos up of Evie on my Instagram.

Q The photos that Mr. Russell is posting are photos from when she was a baby, when she was with him, right?

A When she was a baby, and visiting, and, yeah.

Q So most of those photos are years old, correct?

A I think maybe there's some from 2019, so that would be like -- yeah, I guess you could say they're years old, yeah,

Q Okay.

A One important thing, because I do SEO --

MR. ADVOCATE: I have no further questions.

THE WITNESS: Oh, sorry. Sorry.

MR. ADVOCATE: Thank you, Judge, no further questions.

THE COURT: Ms. Genovese.

MS. GENOVESE: Oh.

RECROSS EXAMINATION OF TARA K. WALSH

BY MS. GENOVESE:

Q When you look at the internet, -- let's say the Evie Loves Stevie website -- is there not some type of a request for people to follow it?

A Yeah, there's like a button to like it -- to like posts -- and, yeah, to follow it. So on the website it's a blog, so there's like a feature where you can like blog posts and comment on them.

Q And, in fact -- withdrawn. There are also texts on the website, correct?

A Yeah, yeah.

Q The text from Mr. Russell, himself --

MR. ADVOCATE: That's beyond the scope of the cross -- of a recross -- at this point. I only asked about Ms. Walsh's own Instagram and Facebook posts. I'm not asking about the blog or any of the other postings that Mr. Russell had done.

MS. GENOVESE: Well, you were likening the posts with some benign Facebook, which this has --

MR. ADVOCATE: I don't liken anything, I just ask questions, Judge. That's all I did.

THE COURT: I'll allow it.

BY MS. GENOVESE:

Q They're texts. They're texts that have Mr. Russell's name on them, so there are texts that have names of other

family members on them.

A Yes.

Q There are emails that have communications from Mr. Russell that are on these websites.

A Yes, yes. I can't vouch for the validity of all of them, and I also should say that I try not to look at it too much because it's upsetting for me, so -- but I have -- I have seen enough of it to see that sort of stuff, yeah.

Q And how would you -- withdrawn. And you indicated you had Facebook, on your Facebook, do you have postings that are derogatory towards Evie's father?

A Absolutely not.

MS. GENOVESE: Nothing further.

HE COURT: Okay. Nothing further from you, Mr. Weddle?

MR. WEDDLE: Nothing, Judge.

THE COURT: All right. Mr. Advocate. No witnesses, right?

MR. ADVOCATE: No. I may have a follow-up question or two, based on Ms. --

THE COURT: Okay.

MR. ADVOCATE: -- Genovese's.

RE-RECROSS EXAMINATION

BY MR. ADVOCATE:

Q Ms. Walsh, I understand that there is an order that

was issued by, I believe, this Court, that said that Mr. Russell's mother, or anyone asking on her behalf, cannot post anything about the child; do you recall that?

A Yes.

MS. GENOVESE: I would object because that's -- the order is specific -- and you're quoting portions of the order. If you're going to quote a court order, either ask the Court to take judicial notice of it, or quote it correctly.

MR. ADVOCATE: I think that's the --

THE COURT: Where are you going with that, Mr. Advocate?

MR. ADVOCATE: I just wanted to know if there's a comparable order prohibiting Mr. Russell from posting anything about the child.

MS. GENOVESE: There is a current order that prohibits postings. It's a long order. I mean, I am also at the end of --

MR. ADVOCATE: No, no, what I'm asking is whether there's an order about Mr. Russell not being able to post.

MS. GENOVESE: There's an order that's quite specific as to what Mr. Russell can or cannot do, and the order would speak for itself. I don't want to --

MR. ADVOCATE: I'm not sure I'm aware of that

order, Judge. And that's why I'm asking -- that's why I'd like the witness to know whether there's --

THE COURT: Okay. So the Court will take judicial notice --

MR. ADVOCATE: Right.

THE COURT: -- of the order entered on default against Mr. Russell. It is --

MS. GENOVESE: And I would also ask that the Court take --

MR. ADVOCATE: And what's the --

MS. GENOVESE: -- judicial --

MR. ADVOCATE: -- Your Honor --

MS. GENOVESE: -- judicial notice of the order that was the temporary order before the permanent order --

MR. ADVOCATE: Let me just --

MS. GENOVESE: -- the restraint --

MR. ADVOCATE: -- I understand, but unless we get there.

MS. GENOVESE: -- came from October.

MR. ADVOCATE: Let me just ask the Court for a courtesy, is it possible the Court could print me a copy of that order, or, you know --

THE COURT: Yes, I'll do that.

MR. ADVOCATE: -- that would be terrific.

THE COURT: The order is dated December 3rd. Is

it printing, Eric? Can you get --

MS. GENOVESE: There was also a previous --

THE COURT: -- I think I'm connected to --

MS. GENOVESE: -- to that, there was a temporary order.

MR. ADVOCATE: The one --

MS. GENOVESE: I'm just explaining.

MR. ADVOCATE: -- the final one is more important to me, but I appreciate that, Donna, actually; I really do.

THE COURT: Well, I'm printing out a copy of the order with Notice of Settlement.

MR. ADVOCATE: Thank you, Judge. Needless to say, I don't have that order, or I wouldn't be asking you.

THE COURT: Okay. Anything further?

MR. ADVOCATE: No, Judge.

THE COURT: Anything further from you, Ms. Genovese?

MS. GENOVESE: No, Judge.

THE COURT: All right. So are we going to do some closing statements?

MR. WEDDLE: Judge, I don't need a closing statement, I think the testimony speaks for itself.

THE COURT: Okay, thank you. You can step down, Ms. Walsh.

THE WITNESS: Thank you.

THE COURT: Mr. Advocate, would you like to make a closing argument?

MR. ADVOCATE: No, thank you, Judge.

THE COURT: Ms. Genovese?

MS. GENOVESE: I would like to request that the orders --

MR. ADVOCATE: Thank you very much.

MS. GENOVESE: -- that the restraints, with respect to Mr. Russell, and also Mrs. Russell, be continued on a permanent basis, and that, in connection with those orders, that it be clear.

I'd like to add to it that neither Mr. Russell or Mrs. Russell would cooperate with providing information, documentation, photographs, texts, emails, to anyone on this -- that creates, or works on, or anyone associated with those websites.

Those websites still exist, and part of the order was to have them removed, but they do still exist. So I would like the orders to continue, and to be that there be no cooperation with any website, or anyone who may own the website, making further postings, and including any further information from these proceedings, any other proceedings involving my client, putting any photographs, texts, or emails regarding this litigation.

THE COURT: And your position with respect to custody?

MS. GENOVESE: With respect to custody, Mr. Russell's not present. Mr. Russell -- I would ask that the petition of the petitioner be granted with respect to custody. There's no cross petition, there's no participation by Mr. Russell. Mr. Russell hasn't participated in a forensic evaluation, he has not paid the court-ordered forensic, so I would support that the petitioner be granted custody.

MR. ADVOCATE: Your Honor, I'll just address the -- I want to address the -- Ms. Genovese's request to basically have a full confidentiality of all the proceedings in here. That's not the state of the law in New York. This is an open courtroom, technically, all the information that's being recorded here is open. It is First Amendment issues that this presses upon. This is not something that should be done by an oral application.

If Ms. Genovese, as the attorney for the child, wants to make some sort of special motion that everything be sealed and nothing can be posted, then that is her right, but it has to be done by motion, on notice, and give Mr. Russell an opportunity to respond to it.

MS. GENOVESE: Mr. Russell had an opportunity to participate in these proceedings, but he chose not to.

THE COURT: Well, that order remains. I've already signed -- that's not an interim order, that's an order on default, the order of which you've just been given a copy, Mr. Advocate.

MR. ADVOCATE: Yes, I know. I know it's --

THE COURT: So that's --

MR. ADVOCATE: -- been entered, Judge.

THE COURT: -- what's that?

MR. ADVOCATE: I know that's been entered.

THE COURT: Yes, it's an order on default. It's a final order, it's not an interim order, so the language in that order will continue.

MR. ADVOCATE: Right. I'm not questioning that, Judge, I think Ms. Genovese is going beyond what's in the order. The order is the order, but I don't think that there should be an additional order made without doing it on motion, with notice, and an opportunity to respond. That's all I'm saying, Judge.

MS. GENOVESE: Mr. Russell would have had the opportunity to testify. He would have had the opportunity to present evidence. He would have had the opportunity to explain his postings, but he has not appeared.

MR. ADVOCATE: Well, this --

MS. GENOVESE: And I object to my client being splashed all over the internet, and derogatory statements

that she can, at some point in her life, see, read, and there have been -- there was testimony that there was another mother that had raised concern about these postings. I just -- I don't see that there's any good coming from these postings, and so I would say that the order should also have Mr. -- well, here. Sorry, I'm just pulling it.

THE COURT: All right. The order is, I think, pretty extensive --

MS. GENOVESE: Right.

THE COURT: -- as it exists, and it seems clear that he's not in compliance with it, by virtue of what I've heard here today.

MR. ADVOCATE: Judge, that isn't clear either. There was no testimony about whether my client has added anything to the blog since then. Although I don't believe --

THE COURT: Well, the order requires that the existing postings, blogs, and likenesses be erased, deactivated, and deleted, and I think it was --

MR. ADVOCATE: I --

THE COURT: -- pretty clear that he has not done that. And moving forward that certainly will have an impact on his future relationship with his daughter, should he desire to have one.

At this point, I'm going to render my decision on the record. On Mr. Russell's default on inquest, I do find it appropriate and in the child's best interest for Ms. Walsh to be awarded sole legal and physical custody.

Testimony was that since June of 2018, Ms. Walsh has been the sole caretaker of the child, and Mr. Russell has had only one contact with his daughter since September of 2019. Even then, Ms. Walsh and Mr. Russell were living together with the child for a brief time in California. He had minimal involvement, including failing to attend doctor's appointments or care.

This Court finds that Ms. Walsh remain the primary caretaker for the child's life. Ms. Walsh testified credibly that Evie is thriving in her care. She testified credibly as to seeing Mr. Russell's mental health issues, and in this respect the Court takes a negative inference, due to his refusal to submit to a forensic evaluation.

Also, given Mr. Russell's failure to take advantage of any access to the child during this Court's limited involvement, I'm going to make any future access conditioned upon his application to the Court.

I find that his creating of the numerous websites which disparage the mother and the family, and include photos of the child, to be inappropriate, and he

has failed to cooperate with this court order that he refrain from doing so and that he delete those posts, which I believe I said on the record in the beginning of this case I find constitute alienating behavior.

It is well-established in the law that parents who disparage the other parent are engaging in alienating behavior, and that is inappropriate.

With respect to the Family Offense petition, again, Ms. Walsh testified credibly as to her need for an Order of Protection, so the Court is continuing the Order of Protection that has been in effect on an interim basis until this date. That Order of Protection is that Mr. Russell stay away from Ms. Walsh, her home, her place of employment, that he have no communication with her by any means, and that he not assault, stalk, harass, threaten, intimidate, or convey criminal offense against her.

That Order of Protection will be in effect until January 5th of 2024. And if you could submit the order on notice, Mr. Weddle, we'll prepare the Order of Protection here today and you can take that for your client. I also want to say that, with respect to the transcript, because they wind up on the internet, that given Mr. Russell's inability to comply with my court order, that I'm ordering, Mr. Advocate, that you not provide your client

with a copy of the transcript, and the Court will not provide a copy to Mr. Russell without an appropriate Affidavit of Nondisclosure, that he agrees not to post any portion of it on any social media platform.

In other words, I'm not denying him access --

MR. ADVOCATE: I understand.

THE COURT: -- to that transcript --

MR. ADVOCATE: I understand.

THE COURT: -- I just find that this sort of behavior lasts forever. He has a young daughter who's too young to get onto the internet by herself, at this point, but clearly, she has friends and family members who are able to do that, and that's very damaging.

And the fact that he doesn't see that is really very distressing to me, that he is engaging in this behavior. He has failed and refused to participate in these court proceedings, to allow me to hear his voice, and to be able to help him, and that is, obviously, to his disadvantage, because, at this point, I believe we have concluded.

I do have one minor housekeeping issue that I'd like to take up after we are off the record, but that concludes all of the petitions pending before me. I do note that there is a support proceeding pending for January 26th, at 10:00 before Support Magistrate Furman,

but other than that, all of the matters pending before me, I believe, are resolved, and you'll submit an appropriate order.

MS. GENOVESE: Okay. Can we go off the record for one moment, Judge? I'm sorry.

THE COURT: Yes. I concluded everything I have to say. Off the record.

(Off the record 12:12:42 p.m.)

(Whereupon a short recess was taken.)

(On the record 12:20:14 p.m.)

THE COURT: All right. We're back on the record, and I just will note that Ms. Walsh has stepped out of the courtroom; it's just the three attorneys here. Mr. Advocate. I'm sorry, Ms. Genovese.

MS. GENOVESE: And I had made a request that the transcripts of these proceedings, in addition to the affidavit, be treated as if it was like a forensic report, in that it only be viewed in Counsel's office, rather than released.

THE COURT: Anyone want to respond?

MR. ADVOCATE: We've had substantial, you know, discussion off the record, and, Judge, I understand that, you know, that's the Court's position, and it makes sense. So I understand.

THE COURT: Yes, and I did say that you couldn't

provide him with a copy of the transcript; I think I said that.

MR. WEDDLE: Yes, you did.

MS. GENOVESE: Yes.

THE COURT: But he certainly can review it in Counsel's office, and when I did say that the Court would not provide him a copy of the transcript, I know that he has a habit of firing lawyers and then proceeding pro se, so that he can get what he otherwise might not be able to get.

And, at that point, he would have to submit an appropriate Affidavit of Nondisclosure that he would not post any portion of the transcript on social media, and he would be subject to contempt if he violates that, just as -- although, apparently, he's not cooperated with the order Ms. Genovese submitted about the websites.

MS. GENOVESE: And also, if he were to do a Motion to Reorder, the Court would -- if there was a transcript -- the Court would maintain that transcript. And so it wouldn't be disseminated either that it can be published all over the place.

THE COURT: Right. I'm trying to minimize the damage to Evie.

MS. GENOVESE: Right.

THE COURT: All right. Thank you.

MR. WEDDLE: Thank you, Judge.

MR. ADVOCATE: Thank you, Judge. .

(12:21:58 p.m.)[PROCEEDING CONCLUDED]

C E R T I F I C A T E

I, VALERI WILSON, certify that the foregoing transcript of proceedings in the White Plains Family Court, NYS, Walsh V. Russell, File #154703, multiple dockets, was prepared using the required transcription equipment and is a true and accurate transcript of the proceedings.

Electronic Signature: Date: May 18, 2022

Valeri Wilson

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